

CHAPTER 16.

An Act to amend the Law relating to Justices of the Peace. [4th August 1906]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. The qualification by estate required in the case of justice of the peace for any county shall be abolished.

2. A person, if in other respects the law allows of it, may be appointed a justice of the peace for any county, notwithstanding that he does not reside in the county, if he reside within seven miles thereof.

3. A solicitor, if otherwise qualified, may be appointed justice of the peace for any county, but it shall not be lawful for any solicitor being a justice, or any partner of his, to practise directly or indirectly before the justices for that county or any borough within the county.

4. Any person who is a justice of the peace by virtue only of holding or having held any office may be excluded from the exercise of his functions as such justice by the same authority by which other justices can be removed from the commission of the peace.

5.—(1) In this Act the expression "county" includes an riding or division of a county.

(2) The enactments mentioned in the schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

6.—(1) This Act shall extend to Scotland with the following modifications:—

- (a) Section two shall not apply to Scotland.
- (b) The expression "solicitor" means enrolled law agent under the Law Agents (Scotland) Act, 1873.
- (c) The expression "county" shall include a county of city.
- (d) For the words "or any borough" occurring in section three there shall be substituted the words "or before any licensing court, or court of appeal constituted in terms of the Licensing (Scotland) Act, 1903."

(2) This Act shall not extend to Ireland.

7. This Act may be cited as the Justices of the Peace Act 1906.

SCHEDULE.

ENACTMENTS REPEALED.

Section 5.

Session and Chapter.	Short Title.	Extent of Repeal.
6 Geo. 2. c. 18.	The Justices Qualification Act, 1731.	The whole Act.
18 Geo. 2. c. 20.	The Justices Qualification Act, 1744.	The whole Act.
6 Geo. 4. c. 48.	The Justices of the Peace Small Debt (Scotland) Act, 1825.	Section twenty-seven.
10 Geo. 4. c. 44.	The Metropolitan Police Act, 1829.	In section one the words "although he may not have any such qualification by estate as is required by law in the case of any other person being a justice of the peace for any county."
26 & 27 Vict. c. 27.	The Stipendiary Magistrates Act, 1863.	In section five the words "although he may not have such qualification by estate as is required by law in the case of other persons being justices of the peace for a county."
34 & 35 Vict. c. 18.	The Justices Qualification Act, 1871.	The whole Act.
38 & 39 Vict. c. 54.	The Justices Qualification Act, 1875.	The whole Act.
45 & 46 Vict. c. 50.	The Municipal Corporations Act, 1892.	In subsection (2) of section one hundred and fifty-seven the words, "except the oath as to qualification by estate," and in subsection (4) of that section the words, "or have such qualification by estate as is required for a justice of a county."
51 & 52 Vict. c. 41.	The Local Government Act, 1888.	In subsection (5) (6) of section two the words "other than the oath respecting the qualification by estate."
51 & 52 Vict. c. 43.	The County Courts Act, 1888.	In section seventeen the words, "although he may not be qualified in such manner as is required by law in the case of other persons being justices of the peace."
56 & 57 Vict. c. 73.	The Local Government Act, 1894.	In section twenty-two the words, "other than the oath respecting the qualification by estate."
52 & 63 Vict. c. 14.	The London Government Act, 1899.	Paragraph (2) of section twenty-four.